DIFC Courts Rules of Court Order No. 1 of 2015 in respect of the Jurisdiction of the SCT

MAY 25, 2015 COURT ADMINISTRATIVE ORDERS

DIFC Courts (/glossary/difc-courts/) Rules (/glossary/rules/) of Court (/glossary/court/) Order No. 1 of 2015 In Respect of the Jurisdiction (/glossary/jurisdiction/) of the Small Claims Tribunal (/glossary/tribunal/) of the DIFC Courts

I, Michael Hwang, Chief Justice (/glossary/chief-justice/) of the DIFC Courts, make the following Order:

In exercise of the powers conferred on me by Article 8(3)(a) of Dubai Law No. 9 of 2004, as amended; and

after having reviewed:

Dubai Law No. 9 of 2004 in respect of the DIFC (/glossary/difc/), as amended;
Dubai Law No. 12 of 2004 in respect of the Judicial Authority at the DIFC, as amended;
DIFC Law No. 10 of 2004 in respect of the DIFC Courts Law;
and

DIFC Order No. 1 of 2014 in respect of the Rules of the DIFC Courts

1. This Order may be cited as the Rules of Court 2015 Order No. 1 of 2015.

2. The DIFC Courts Small Claims Tribunal (SCT) jurisdiction (/glossary/jurisdiction/), as set out in the Rules of the DIFC Courts (RDC) Part 53.2 shall be amended to read as follows:

“The SCT will hear and determine claims within the jurisdiction of the DIFC Courts:

(1) where the amount of the claim or the value of the subject matter of the claim does not exceed AED 500,000 [1]or;

(2) where the claim relates to the employment or former employment of a party; and

all parties elect in writing that it be heard by the SCT (there is no value limit for the SCT’s elective jurisdiction in the context of employment claims); or

(3) which do not fall within the provisions of sub-paragraphs (1) or (2) above, but in respect of which:

(a) the amount of the claim or the value of the subject matter of the claim does not exceed AED 1,000,000; and

(b) all parties to the claim elect in writing that it be heard by the SCT, and such election is made in the underlying contract (if any) or subsequent to execution of that contract

or

(4) such other claims as may be ordered or directed by the Chief Justice to be heard by the SCT from time to time."

3. The SCT judge (/glossary/judge/) reserves the discretion to allow parties to be legally represented where such representation is considered appropriate.[2]

4. This shall first be reflected in the online version of the RDC, and subsequently in the hardcopies due for publication in the first half of 2015.

5. The amended Rules will come into force on 25 May 2015.

Michael Hwang
Chief Justice of the DIFC Courts

Issued: 25 May 2015

[1] The DIFC Courts Small Claims Tribunal (SCT) shall henceforth exercise a default jurisdiction over all applications lodged with the Courts (/glossary/court/) where the value of the claim (whatever its nature) does not exceed AED 500,000. This in no way affects RDC 53.37, which grants the SCT judge discretion to order that a small claim be transferred to the Court of First Instance in circumstances where the judge considers it to be appropriate.

[2] See, in this connection, RDC 53.52.